

BEFORE THE IOWA BOARD OF PSYCHOLOGY

In the Matter of:	)	Case No. 14-0268
	)	
BRUCE DAWSON,	)	SETTLEMENT AGREEMENT
	)	AND FINAL ORDER
RESPONDENT.	)	

Pursuant to Iowa Code sections 17A.12(5) and 272C.3(4) (2015), and 645 IAC 12, the Iowa Board of Psychology ("Board") and Bruce Dawson ("Respondent") enter into the following Settlement Agreement and Final Order ("Order") to settle a contested case currently pending before the Board.

The allegations contained in the Statement of Charges against Respondent shall be resolved without proceeding to hearing, as the Board and Respondent stipulate as follows:

1. The Board filed a Notice of Hearing and Statement of Charges on February 12, 2016.

2. The Board has jurisdiction over the parties and the subject matter of these proceedings.

3. Respondent does not contest that the allegations in the Statement of Charges, if proven in a contested case proceeding, may constitute grounds for the discipline agreed to in this Order.

4. Execution of this Order constitutes the resolution of a contested case and is not an admission of liability. Respondent has a right to hearing before the Board on the charges, but Respondent waives the right to hearing and all attendant rights, including the right to appeal or seek judicial review of the Board's actions, by freely and voluntarily entering into this Order. Once entered, this Order shall have the force and effect of a disciplinary order entered following a contested case hearing.

5. Respondent acknowledges that he has the right to be represented by counsel on this matter.

6. Respondent agrees that the State's counsel may present this Order to the Board and may have *ex parte* communications with the Board while presenting it.

7. This Order is subject to approval by a majority of the full Board. If the Board does not approve this Order, it shall be of no force or effect to either party, and shall not be admissible for any purpose in further proceedings in this matter. If the Board approves this Order, it shall be the full and final resolution of this matter.

8. This Order shall be part of Respondent's permanent record and shall be considered by the Board in determining the nature and severity of any disciplinary action to be imposed in the event of any future violations.

9. Respondent understands the Board is required by federal law to report any adverse action to the National Practitioner Data Bank.

10. This Order, when fully executed, is a public record and is available for inspection and copying in accordance with the requirements of Iowa Code chapters 22 and 272C.

11. The Board's approval of this Order shall constitute a **FINAL ORDER** of the Board.

IT IS THEREFORE ORDERED:

12. Respondent is hereby **CITED** for engaging in motor strength testing absent informed consent in violation of the rules governing the practice of psychology and **WARNED** that Respondent's failure to comply with the laws and rules governing the practice of psychology in the future may result in further discipline.

13. Respondent shall pay a **CIVIL PENALTY** in the amount of one thousand dollars (\$1000) within twenty (20) days of Board approval of this Order. The check shall be made payable to the "Treasurer of Iowa" and shall be deposited in the general fund.

14. Respondent's license shall be placed on **PROBATION** for a minimum period of two (2) years, subject to the following terms and conditions:

- a. Respondent shall complete two (2) years of monitored practice before being released from probation. Prior to beginning practice monitoring, Respondent shall submit a proposed practice monitor, who must be an Iowa licensed psychologist, and a practice monitoring plan to the Board for approval within thirty (30) days of Board approval of this Order. Practice monitoring shall commence upon Board approval of the monitor and the plan. Respondent shall provide the practice monitor with a copy of this Order and the Notice of Hearing and Statement of Charges. Respondent's practice monitor shall perform an initial review of Respondent's practice with the goal of identifying potential areas for improvement. After the initial review meeting, Respondent shall meet in a face-to-face setting with the practice monitor on a bimonthly basis during the probationary period to review at least 10% of Respondent's clinical records. A minimum of six meetings per year, in addition to the initial review meeting, are required. Respondent's practice monitor shall submit quarterly reports to the Board describing the clinical records reviewed, dates of meetings held with Respondent, a summary of the discussion held at each meeting, the practice monitor's recommendations for further

mentoring and monitoring, if any, and any other information the practice monitor deems relevant for the Board's review. Said quarterly reports are due on January 5, April 5, July 5, and October 5 of each calendar year during the probationary period. Respondent is responsible for all costs associated with practice monitoring and for ensuring the quarterly reports are timely submitted by the practice monitor. The quarterly reports should be mailed to the Iowa Board of Psychology, Attn: Sharon Dozier, Bureau of Professional Licensure, Iowa Department of Public Health, Lucas State Office Building—5th Floor, 321 East 12th St., Des Moines, IA 50319, or emailed to Sharon.Dozier@idph.iowa.gov. The Board may, in its sole discretion, reduce the frequency of the required monitoring meetings after one year, upon the recommendation of the practice monitor.

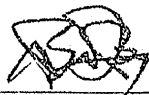
- b. Respondent shall obey all federal and state statutes and regulations governing the practice of psychology.

15. Respondent hereby voluntarily agrees to implement the following prophylactic measures for the protection of the patient and Respondent in future work as a psychologist in the State of Iowa:

- a. That any psychologist-patient interaction with a minor is conducted with an open door; and
- b. That any psychologist-patient interaction with a minor where physical testing is required, the physical testing shall be witnessed by the minor's parent, legal guardian, or (so long as informed consent is given) a member of Dr. Dawson's staff.

16. Should Respondent violate the terms of this Order, the Board may initiate action to impose other licensee discipline as authorized by Iowa Code chapters 147, 154B, and 272C and 645 IAC 13 and 242.

This Settlement Agreement and Final Order is voluntarily submitted by Respondent to the Board for its consideration on the 8th day of August, 2016.



BRUCE DAWSON
Respondent

This Settlement Agreement and Final Order is approved by the Iowa Board of Psychology on the 12th day of August, 2016.

Brandon Davis, Ph.D.
Chairperson
Iowa Board of Psychology
by SD

Copies to:

David Van Compernelle
Assistant Attorney General
Iowa Attorney General's Office
Hoover State Office Building, 2nd Floor
1305 E. Walnut Street
Des Moines, IA 50319
ATTORNEY FOR THE STATE

Guy Cook/Adam Zenor
Grege Sidney
500 East Court Ave., Suite 200
PO Box 10434
Des Moines, IA 50306
ATTORNEY FOR RESPONDENT